HCC Specialty
37 Radio Circle Drive Mount Kisco, NY 10549
main (914) 242 7840 facsimile (914) 241 1133
e-mail MPL@hcc.com

Professional Liability Errors and Omissions Insurance Application

THIS IS AN APPLICATION FOR A CLAIMS MADE AND REPORTED POLICY
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THIS APPLICATION IS NOT A BINDER

1. GENERAL INFORMATION			
Name of applicant		Date established	
Street address		Phone	
City, State, Zip		Contact e-mail	
Branch office cities		Website	

2. REQUIRED ADDITIONAL INFORMATION

List the Limit of Liability and Deductible options that the applicant would like quoted.

Limits	**Deductibles***

***For deductible requests of $25,000 or more, enclose a copy of your most recent annual financial statements.**

3. PERSONNEL ENGAGED IN PROVIDING PROFESSIONAL SERVICES TO CLIENTS

	Name of Personnel	Professional Qualifications	Date Qualified	How long in practice
a. Principals, Partners, Officers & Directors				
b. Other Key Personnel				
c. Technical Personnel				
d. Other (Administrative / Clerical)				
e. Resumes of key professionals (please attach)				

4. PROFESSIONAL SERVICES

a. Please describe, in detail, the professional services for which coverage is desired:

b. Is the applicant engaged in any business or profession other than described in Question 4 a ? ☐ Yes ☐ No

If Yes, please provide an explanation and estimated revenues:

5. GROSS REVENUES – List the total gross revenues derived from the services in Question 4 for the following fiscal years.

	Current Fiscal Year ending / (current projected)	**Last** Fiscal Year ending /	**Two** Fiscal Years ago ending /
Total gross revenue*	$	$	$

***If revenues are over $10,000,000, please attach a copy of your most recent financial statements.**

6. For the revenues listed in Question 5, please give the approximate percentage derived from each of the services listed in Question 4.	
Activity	**Percentage of revenue from Q4**
	_____ %
	_____ %
	_____ %
	_____ %
	_____ %
	_____ %

7. ADDITIONAL INFORMATION REQUIRED	
a. In the past 12 months has the applicant had a positive net income?	☐ Yes ☐ No
b. In the past 12 months has the applicant had positive net equity? **If No to question 7a or 7b, please provide details including remedial actions taken:**	☐ Yes ☐ No
c. Does the applicant firm provide professional services to business entities in which it retains ownership? **If Yes, please explain and provide the percentage of ownership:**	☐ Yes ☐ No
d. Is the applicant firm controlled, owned or associated with any other firm, corporation or company? **If Yes, please explain:**	☐ Yes ☐ No
e. Are any professional services listed in Question 4 provided to such business enterprise?	☐ Yes ☐ No

8. PLEASE LIST THE APPLICANT FIRM'S FIVE (5) LARGEST JOBS OR PROJECTS FROM THE PAST YEAR.		
Client/Project Name	Nature of Services Performed	Revenues

9. CONTRACTS	
a. Does the applicant firm use a written contract with clients? **If No, please explain:**	☐ Yes ☐ No ☐ Sometimes
b. Have your contracts and procedures been reviewed by a law firm? **If No, please explain:**	☐ Yes ☐ No
c. Does your firm assume liability for others under contracts utilized? **If Yes, please explain:**	☐ Yes ☐ No

10. INDEPENDENT CONTRACTORS	
a. Does the applicant use independent contractors? **If Yes, please answer the following:**	☐ Yes ☐ No
b. What percentage of the applicant firm's business involves subcontracting work to others?	_____ %
c. What types of services are performed by independent contractors?	
d. Are you seeking coverage for independent contractors?	☐ Yes ☐ No
e. Is proof that independent contractors carry professional liability required?	☐ Yes ☐ No

11. INSURANCE HISTORY	
a. Has any similar insurance ever been declined or cancelled? **If Yes, please explain:**	☐ Yes ☐ No
b. Is similar insurance currently in force? **If Yes, please provide a description of services being covered:**	☐ Yes ☐ No

Name of Insurer	
Expiration Date	
Limit of Liability	
Deductible	
Premium	
Retroactive Date	

c. Give the following information for General Liability coverage in force:

Carrier	
Limit of Liability	
Expiration Date	

12. CLAIM INFORMATION	
a. Have any claims been made or legal action been brought against your firm, its predecessor(s) or any current or former principal, partner, director, officer or employee in the past five years? **If Yes, please explain:**	☐ Yes ☐ No
b. After complete investigation and inquiry, do any of the principals, partners, directors, officers, employees, or insurance managers have knowledge of any act, error, omission, fact, incident, situation, unresolved job dispute, accident, or any other circumstance that is or could be the basis for a claim under this proposed insurance policy? **Report knowledge of all such incidents to your current carrier prior to your current policy expiration.** The proposed insurance being applied for will not respond to incidents about which you had knowledge prior to the effective date of the policy nor will coverage apply to any claim or circumstance identified or that should have been identified in Questions 10a and 10b of this application.	☐ Yes ☐ No
c. Does your firm, its predecessor(s) or any subsidiary have any current outstanding deductible obligations on any insurance policies? **If Yes, give the exact amount owed to the insurance company and, if a payment schedule is in place, the amount and dates of repayment:**	☐ Yes ☐ No
d. Have any individuals listed in question 2 ever been the subject of disciplinary action by authorities as a result of their professional activities? **If Yes, please explain:**	☐ Yes ☐ No
e. Please attach current claims history/insurance company loss summary for the past 5 years.	

13. NETWORK SECURITY and PRIVACY LIABILITY

☐ Check if not applying for this coverage option.

Complete this section only if your firm is applying for Network Security and Privacy Liability coverage.
***Depending on the Applicant's responses to the questions below and/or the class of business, additional information and/or supplemental applications may be needed.**

A. How does your firm store personal information about your clients (including, but not limited to, social security numbers, credit card information, zip codes, etc.)?

Check all that apply:
- ☐ Electronically
- ☐ Physically

B. Access to this personal information is controlled by?

Check all that apply:
- ☐ Password
- ☐ Encryption
- ☐ Physical Security (e.g. locked doors and file cabinets, etc.)
- ☐ Other (specify):

C. Does your firm collect credit card information from your customers or vendors?

☐ Yes ☐ No

If Yes, how much of your firm's revenue is collected using credit cards?
- ☐ Less than 10%
- ☐ 10-25%
- ☐ 26-50%
- ☐ More than 50%

If Yes, is your firm PCI SSC Data Security Standards compliant?

☐ Yes ☐ No

D. Your firm's computer systems contain which of the following security measures?

Check all that apply:
- ☐ Anti-Virus
- ☐ Firewall
- ☐ Intrusion Detection
- ☐ Automatic Updates
- ☐ Other (specify): _____

E. Within the last five years has your firm had any of the following

Check all that apply:

- ☐ A breach of security?
- ☐ Unauthorized acquisition, access, use or disclosure of personal information?
- ☐ Violation of any privacy law, rule or regulation?
- ☐ Transmission of any virus or malicious code?
- ☐ None

If you checked any, explain in detail what happened and the steps taken to mitigate the problem and prevent a recurrence (use additional sheets as necessary)

F. Does your firm have access to, collect, store, maintain or transmit personal information on behalf of your clients(s)? **If Yes, our Network and Privacy Security supplemental application must be completed prior to considering coverage.**	☐ Yes ☐ No

14. NOTICE TO APPLICANT

IT IS UNDERSTOOD AND AGREED THAT WITH RESPECT TO QUESTIONS 12a, 12b, 12c, 12d and 13e ABOVE, THAT IF SUCH KNOWLEDGE OR INFORMATION EXISTS ANY CLAIM OR ACTION ARISING THEREFORM IS EXCLUDED FROM THIS PROPOSED COVERAGE.

NOTICE TO NEW YORK APPLICANTS: ANY PERSON WHO KNOWINGLY AND WITH INTENT TO DEFRAUD ANY INSURANCE COMPANY OR OTHER PERSON FILES AN APPLICATION FOR INSURANCE CONTAINING ANY FALSE INFORMATION, OR CONCEALS FOR THE PURPOSE OF MISLEADING, INFORMATION CONCERNING ANY FACT MATERIAL THERETO, COMMITS A FRAUDULENT INSURANCE ACT, WHICH IS A CRIME.

The Applicant hereby acknowledges that he/she/it is aware that the limit of liability shall be reduced, and may be completely exhausted, by the costs of legal defense and, in such event, the Insurer shall not be liable for the costs of legal defense or for the amount of any judgment or settlement to the extent that such exceeds the limit of liability.

I HEREBY DECLARE that, after inquiry, the above statements and particulars are true and I have not suppressed or misstated any material fact and that I agree that this application shall be the basis of the contract with the Underwriters.

15. CERTIFICATION AND SIGNATURE

The applicant has read the foregoing and understands that completion of this Application does not bind the Underwriter or the Broker to provide coverage. It is agreed, however, that this Application is complete and correct to the best of applicant's knowledge and belief and that all particulars which may have a bearing upon acceptability as a Professional Liability insurance risk have been revealed. It is understood that this Application shall form the basis of the contract should the Underwriter approve coverage and should the applicant be satisfied with the Underwriter's quotation.

It is further agreed that, if in the time between submission of this Application and the requested date for coverage to be effective, the applicant becomes aware of any information which would change the answers furnished in response to the questions in section 12, or any other question of this Application, such information shall be revealed immediately in writing to the Underwriter.

The Application shall be deemed attached to and form a part of the Policy should coverage be bound.

Must be signed by a Principal, Partner, Officer or Director

Print or Type Applicant's Name	Title of Applicant
Signature of Applicant	Date Signed by Applicant

EOP (01/15)

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Consultants Supplemental Application

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1. INDICATE WHICH OF THE FOLLOWING SERVICES YOU PROVIDE AND THE PERCENTAGE OF REVENUE DERIVED FROM EACH:			
Organizational Structure		Long Range Planning	
Systems Analysis		Marketing/Communications	
Human Resource		Merger/Acquisition	
Benefits		Risk Management	
Turnaround Management		Insurance Consulting	
Interim Management		Product Development	
Investment Consulting		Other	

2. DO YOU ANTICIPATE ANY CHANGES IN THE TYPES OF MANAGEMENT CONSULTING SERVICES YOU PROVIDE?	☐ YES ☐ NO
If YES, please explain:	

3. DOES THE APPLICANT CONSULT ON MEANS OR METHODS OF FINANCING OR OBTAINING FUNDS?	☐ YES ☐ NO
If YES, please provide details:	

4. IS THE APPLICANT INVOLVED IN THE MANAGEMENT, PURCHASE, SALE OR MAINTENANCE OF ANY REAL OR PERSONAL PROPERTY, OR IN ANY ACTIVITY RELATED IN ANY WAY TO INVESTMENTS OR INVESTING?	☐ YES ☐ NO
If YES, please provide details:	

5. DOES THE APPLICANT CONSULT ON, SUPERVISE OR MANAGE ANY ESCROW ACCOUNTS, TRUST FUNDS, INSURANCE PLANS OR INVESTMENT PORTFOLIOS?	☐ YES ☐ NO
If YES, please provide details:	

6. DOES THE APPLICANT SELL, DISTRIBUTE, DESIGN, MANUFACTURE, RECOMMEND OR TEST ANY PRODUCTS?	☐ YES ☐ NO
If YES, please provide details:	

7. DOES THE APPLICANT PREPARE, REVIEW OR APPROVE ARCHITECTURAL, ENGINEERING OR CONSTRUCTION MAPS, PLANS, OPINIONS, ESTIMATES, SURVEYS, DESIGNS OR SPECIFICATIONS?	☐ YES ☐ NO
If YES, please provide details:	

8. HAS THE APPLICANT AGREED TO MANAGE THE OPERATIONS OF ANY BUSINESS ON BEHALF OF ANY CLIENT, OR DOES THE APPLICANT ASSIST IN NEGOTIATING OR HAVE AUTHORITY TO ENTER INTO CONTRACTURAL RELATIONSHIPS ON ANY CLIENTS BEHALF?	☐ YES ☐ NO
If YES, please explain:	

9. DOES THE APPLICANT PERFORM ANY DESIGN OR CONSULTING SERVICES IN RELATION TO ANY LOTTERIES, SWEEPSTAKES, OR ANY GAME OF CHANCE?	☐ YES ☐ NO
If YES, please provide details:	

10. DOES THE APPLICANT HAVE ANY LICENSED ARCHITECTS/ENGINEERS, ATTORNEYS, OR CPAS ON STAFF?	☐ YES ☐ NO
If YES, please explain the services	

CERTIFICATION AND SIGNATURE	
It is understood and agreed that this supplemental application shall become part of the application for Professional Liability Errors & Omissions insurance. **Must be signed by a Principal, Partner, Officer or Director**	
Print or Type Applicant's Name	Title of Applicant
Signature of Applicant	Date Signed by Applicant

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HCC Specialty, a division of HCC Insurance Holdings, Inc., is comprised of HCC Specialty Underwriters, Inc. and Professional Indemnity Agency, Inc.

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Claim/Incident Supplemental Application

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1. Name of Applicant.

2. Full name of individual(s) and name of firm involved in the claim/incident.
3. Additional Defendants.
4. Full name of claimant/plaintiff.
5. Date of Claim.
6. Description of type and scope of services provided.
7. Allegations and/or nature of claim/incident.
8. Date reported to the insurance company.
9. To what insurance company was the claim reported?
10. Present status of claim/incident.
☐ Open ☐ In Suit ☐ Closed
11. If open or in suit, please indicate the following:

Total damages claimed	$ _____
Settlement demand	$ _____
Settlement offer	$ _____
Total amount paid in defense costs to date	$ _____
Total damages paid/outstanding	$ _____

12. If open or in suit, current valuation (including your deductible)	
Damages $_____	Expenses $_____
13. If closed, total paid (including your deductible)	
Damages $_____	Expenses $_____

14. Do you have any current outstanding deductible obligations on this claim?	☐ **Yes** ☐ **No**
If yes, give exact amount owed to the insurance company and, if payment schedule is in place, the amount and dates of repayment.	

15. Please explain what action has been taken to prevent a recurrence of a similar claim/incident.

16. CERTIFICATION AND SIGNATURE	
It is understood and agreed that this supplemental application shall become a part of the application for Professional Liability Errors & Omissions insurance. **Must be signed by a Principal, Partner, Officer or Director**	
Print or Type Applicant's Name	Title of Applicant
Signature of Applicant	Date Signed by Applicant

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